



The Planning Board
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES OF A MEETING

Thursday, February 5, 2026, 7:00 PM

CALL TO ORDER

Ms. Milikowsky called the meeting to order at 7:11 PM

PRESENT: Bronstein, Wade Clement, Coffey, Milikowsky, Zimmerman

ALSO PRESENT: Doug Finn (Clerk), others as noted.

PUBLIC COMMENT on any item not on the agenda

No public comment was presented.

PUBLIC HEARING – Special Permit –Main Road (Bauer)

The Westhampton Planning Board continued a public hearing from January 13, 2026 at 7 PM at the Town Hall, 1 South Road, at the request of Aaron Bauer to hold a one-day motocross race in the woods on two occasions in a calendar year. Subject property is at 0 Main Road, Assessors Parcel #029-0-0009. Application available online at www.WesthamptonMA.gov or at the Town Hall, 1 South Road, during regular business hours.

Ms. Milikowsky presented rules of conduct for the continuation of the public hearing.

Ms. Milikowsky reminded members to remain respectful, and that any disruptions will not be tolerated.

Ms. Milikowsky read the public notice.

The public hearing was opened at 7:16 PM.

Presentation

Mr. Aaron Bauer, owner of the property, offered additional comments:

- Mr. Bauer referred to the Zoning Map of the Town of Westhampton as reference.
- Mr. Bauer noted that he had spoken with Holyoke Water Works staff and additional hydrologists.
- Mr. Bauer read several comments from persons as posted to social media in support of the program.
- Mr. Bauer read from a letter from Mr. David Unaitis (in project file)
- Mr. Bauer noted no issues reported from Westhampton Police or Westhampton Fire.
- Mr. Bauer noted that the Highway Superintendent requested that the road be swept after the event last year, which was done.
- Mr. Bauer referred to a site survey, showing the location of the event, and the distance of the event to peoples homes.
- Mr. Bauer noted that he was advised that, in order for a well to be contaminated, a ‘catastrophic event’ within 300 feet of a wellhead would have to occur.
- Mr. Bauer noted distances from the ‘starting line’ of the race to various residents’ homes, and clarified that the distance was measured to their homes, not to a boundary line.
- Mr. Bauer reiterated his request to have two events in a calendar year.
- Mr. Bauer noted that traffic on Route 66 is busy and noisy as is; he further noted that at the previous event, no traffic control was requested by the Westhampton PD.
- Mr. Bauer noted the minimum distances between potable water wells and leech fields was considerably less than the distance between the race area and any neighboring home or well.
- Mr. Bauer noted the location of the Watershed Protection Overlay District, and commented on how surface water generally flows (south, towards the old “Whites Reservoir”).

- Mr. Bauer referred to a report from 2024 as published by Holyoke Water Works, noting that it stated “the most contamination detected was sodium, likely as a result of salting roads”; He also noted that drinking water chlorination is also a source of ground-water pollution.
- Mr. Bauer noted that the well on his family property (adjacent to the subject property) was drilled to a depth of 240 feet.
- Mr. Bauer noted that he had reviewed the zoning bylaws, and noted certain uses that were prohibited and restricted in the Water Resources Overlay District.
- Mr. Bauer reiterated his request for a one-day, temporary event with “no commercial intent”, that would not include any of the prohibited activities (as noted in the Zoning Bylaw, section 4.1.4) on the site.

Mr. Bauer thanked the board for the time.

Ms. Milikowsky opened the floor for additional public comment:

- _____ Laurel Hill Road – My big concern is the noise; having travelled by the site, the noise was ‘really really loud’.
- Ms. Laurie Sanders, Montague Road: Q: Is this proposed to be a one-day event? Is there setup? Is there registration? Is there a cap on the number of participants?
- Linda Stacey, 367 Main Road, read a prepared statement, objecting to the proposed activities.
- Mr. Bauer reiterated the facts of the event:
 - Organizers arriving on Friday
 - Event setup occurs on Saturday
 - The event happens on Sunday.
 - 250 riders, but less bikes.
 - 425 people on site in all.
 - Not all participants camped.
 - About 35 campers were on the site.
 - Cooking and food service is permitted
 - Sanitary services are provided on site.

There being no new persons making comments, Ms. Milikowsky opened the floor to comments from residents.

- Mr. John Shaw, Stage Road: “I feel terrible about this thing.” Mr. Shaw objected to the limitation on his time to speak, and insisted that the Planning Board’s failure to enact a policy “is illegal”. Mr. Shaw stated that the zoning bylaw does not allow the event to happen at this location, as the majority of the land is located in the Watershed Protection Overlay District. He noted that while the zoning bylaw could be changed, the Watershed Protection Overlay District is delimited by the state. He noted that opinions of specialists or consultants do not counter the requirements in place.

Ms. Milikowsky noted that the applicant was advised by the Building Commissioner to request a special permit, which was done, and the board is required to act on the application.

Mr. Coffey noted that the majority of the land is in the Water Supply Projection Overlay District, but some is not.

Ms. Milikowsky noted that the Zoning Map uses the resources from MassGIS, and was updated in 2025.

Ms. Milikowsky read from Section 4.1 of the Zoning Bylaw.

- Mr. Bill Tracy, South Road: The issues about the proposal are secondary to the impact of the deliberation on the neighborhood. He noted that, unfortunately, the first event was a surprise to the neighborhood, and that constituted much of the problem. Mr. Tracy noted a recent comment by the applicant: “we should be able to do what we want with our own land”; Mr. Tracy suggested that right extends to his neighbors, and that owners of parcels of 1 acre or 100 acres all have similar wishes and rights to use and enjoy their land; Mr. Tracy noted that some of the neighbors may not know each other as much as they should, which might help to encourage more and more effective communication; Mr. Tracy suggested that the event could be a positive outlet for many families; do

we want to stand in the way of that? Mr. Tracy acknowledged the impact of the noise on some of the neighbors, but suggested that if they wished, they could be away from their home on the day when the most disruption would occur.

- Mr. Mike Matrishon, 349 Main Road: Mr. Matrishon reiterated some of the history of motocross events on the subject property, and suggested that the zoning bylaws should be upheld without residents having to fight over and over for the right outcome.
- Mr. Mike Stacy, 367 Main Road: Mr. Stacy noted problems with the previous event, such as noise, pollution, traffic, dust, and other factors could lead to reduced property values.

Ms. Milikowsky reiterated some of the process: In 2025, Mr. Bauer appealed a decision of the Westhampton Building Inspector to the Zoning Board; the ZBA upheld the decision of the building inspector, a decision which Mr. Bauer appealed. The ZBA decision was upheld by the courts.

- Ms. Karinna Swenson 412 Main Road: Mr. Bauer is a good neighbor; my sons had the opportunity to attend the event in 2024, and really enjoyed it; Ms. Swenson also reiterated the value of having good neighbors. Ms. Swenson noted that, if the event is just one day a year, but has significant social value to families and residents, it might be worth considering.
- Catherine Mis, Attorney (representing Mr. Kahane, Mr. Stacy and Mr. Matrishon): Two issues: Are the events well run? They may be. The second issue has to do with the zoning. The use schedule in the Zoning Bylaw does not allow commercial events in the Water Protection Overlay District. Further, allowing individuals to camp on the property for more than one day would require a special permit for a campground, a use that is not allowed in the residential / agricultural zone. Ms. Mis summarized that a commercial event, and/or a campground are not permitted in the Watershed Protection Overlay District. Ms. Mis noted that all other factors are irrelevant.

Ms. Milikowsky noted receipt of additional letters, and that they would be in the record of proceedings.

Mr. Bauer was asked to describe the ‘commercial nature of the event’? Mr. Bauer: The event is organized by P27, a for-profit race promoter. Mr. Bauer noted that he takes ‘parking donations’ at the event.

Mr. Clement: have you considered having a formal survey done to identify the portion of the land that lies within the overlay district? Mr. Bauer: I would be willing to do a survey, specifically to designate the different parts of the lot that are registered in different sections of Chapter 61.

There was an exchange between Mr. Coffey and Mr. Bauer as to whether the use could be allowed in the at all, due to it being a commercial use and the majority of the use being proposed for the Watershed Overlay Protection District.

Ms Milikowsky noted that the Planning Board has a legal responsibility to act on and affirmatively respond to any special permit application submitted to it.

Mr. Bauer was offered an opportunity to make a final comment.

- Mr. Bauer reiterated that last summer, Holyoke Water Works reiterated that they do not have jurisdiction over private property.
- Mr. Bauer asked rhetorically whether other uses (logging, homebuilding, etc.) could be allowed on other lots in the Watershed Protection Overlay District.
- Mr. Bauer suggested that, as a town, we could work this out, and offered the board the opportunity to visit the site.

Ms. Milikowsky asked for a motion to close the public hearing.

It was MOVED by Bronstein, SECONDED by Clement

To close public hearing

VOTED: 5, 0, 0. (8:40 PM)

Ms. Milikowsky noted that the boundaries of the overlay district are not in question and are not subject to review at this time.

Ms. Milikowsky noted that the application is for a commercial activity under section 3.159 of the

Westhampton Zoning Bylaw.

Ms. Milikowsky noted that the proposed use is largely in the Watershed Protection Overlay District.

Ms. Milikowsky noted that she therefore finds that the use cannot be permitted or conditionally permitted.

Ms. Milikowsky asked for a motion.

It was MOVED by Coffey, SECONDED by Clement,

To deny the application.

VOTED: 5, 0, 0 (8:42 PM)

Review of Minutes from January 13, 2026

The minutes of January 13, 2026 were reviewed. After review, it was MOVED by Bronstein, SECONDED by Coffey

To approve the minutes of January 13, 2026 as presented.

VOTED: 5, 0, 0. (8:51 PM)

Set date for next meeting

Ms. Milikowsky noted that she would be away on March 10, as would Mr. Clement. Ms. Milikowsky suggested March 3 as a next meeting date. Mr. Zimmerman suggested he would be late, but could attend. After review and with general consensus, Ms. Milikowsky set the next meeting for March 3, 2026, 7 PM.

ADJOURN

It was MOVED by Bronstein, SECONDED by Coffey

To adjourn.

VOTED: 5, 0, 0. (9:06 PM)

Respectfully submitted,

Douglas C. Finn